

FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

TOWD POINT MORTGAGE TRUST 2017-1,
U.S. BANK NATIONAL ASSOCIATION,
AS INDENTURE TRUSTEE

Plaintiff,

-against-

GINA FOX, JOHN FOX AKA JOHN
WILLIAM FOX, NEW YORK CITY
ENVIRONMENTAL CONTROL BOARD

Defendant.

Index No. 808380/2024E

MORTGAGED PROPERTY:

2849 East 195th Street and 2847 East
195th Street
Bronx, NY 10461

COUNTY: Bronx

SBL #: Block 4242 Lot 57 & 58

Sale Date: June 01, 2026

A. To be completed by the Referee

- Final Judgment Amount per Judgment: \$ 235,029.23
- Adjusted Judgment Amount (Upset Price): \$ 272,857.37
(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
- Sale Price: \$ 585,000
(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
- Surplus Amount (enter \$0.00 if no surplus) \$ 312,142.63
***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees
earned in this matter:

\$ 750.00

Referee Name: Scott H. Siller, Esq.

Telephone: 516-644-6769

Address: 706 Equestrian Way, Westbury, NY 11590

Email: _____

Signature/Date: _____

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC

Address: 1775 Wehrle Drive, Suite 100,
Williamsville, NY 14221

Telephone: (716) 204-1700

Email: info@grosspolowy.com

Signature/Date: _____

C. To Be Completed by Purchaser

Name: Arvern Bench Properties

Address: 147-20 Hillside Ave

Jamaica NY 11435

Telephone: 718 291-5555

Email: _____

Signature/Date: _____

Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>